

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

**RESPONDENT’S UNOPPOSED MOTION FOR THIRD AMENDED SCHEDULING
ORDER**

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Respondent BAL Container Line Co., Limited (“BAL”) by its undersigned counsel, hereby submits this Motion to Extend Deadlines (“Motion”), respectfully requesting an extension of the remaining deadlines set forth in the Presiding Officer’s Second Revised Scheduling Order, as detailed herein, by 45 days.¹

This request seeks a Third Revised Scheduling Order on the grounds that Complainant 20230930-DK-Butterfly-1, Inc. (“BBBY”) has unnecessarily delayed BAL’s ability to meaningfully implement an ESI search protocol and produce responsive documents by their current deadline. Since the Presiding Officer’s last revision to the Scheduling Order, BAL has spent significant time and effort collecting custodian email accounts and ingesting them into an e-discovery platform. BAL has also met and conferred with BBBY regarding an ESI search protocol, and is ready to run the agreed-upon search terms on its custodians’ accounts. Unfortunately, BBBY has stalled BAL’s ability to run these searches by unilaterally filing a motion to compel BAL to

¹ Some of the proposed deadlines are moved by more than 45 days, due to the new date falling on a weekend.

amend its custodian list. There, BBBY alleges that BAL has unnecessarily delayed fulfillment of its discovery obligations. Yet, the only reason for delay here is the conduct of BBBY. BAL has worked in good faith towards accomplishing its discovery obligations by the deadlines set forth in the Second Revised Scheduling Order. To that end, as soon as BAL and BBBY's (together, the "Parties") custodian dispute arose, BAL suggested filing a joint motion to expedite resolution of the issue. BBBY chose to file unilaterally. Because resolution of this issue necessarily impacts BAL's ability implement the Parties' search protocol and to produce documents to BBBY by the current September 15, 2025 deadline, BAL respectfully requests an extension to the current Scheduling Order. BBBY has indicated it does not oppose this request.

I. THE CURRENT SCHEDULE

On August 13, 2025, the Presiding Officer entered the Second Revised Scheduling Order, which includes deadlines affecting this Motion as follows:

September 15, 2025	Respondent provides documents identified in Order on Complainant's Motion to Compel.
October 15, 2025	Complete depositions of fact witnesses. Last day to serve interrogatories, requests for admissions, and RFPs.
October 30, 2025	Disclosure of initial expert reports, if any.
December 1, 2025	Disclosure of rebuttal expert reports, if any.
December 15, 2025	Complete expert depositions. Close of all discovery.
January 6, 2026	Complainant's initial brief, proposed findings of fact, and appendix.
February 4, 2026	Respondent's opposition brief, proposed finding of fact, and appendix.

II. GOOD CAUSE EXISTS TO EXTEND THE CURRENT DEADLINES

1. Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Good cause exists for the extension requested herein.

2. In the Second Revised Scheduling Order, the Presiding Officer granted BAL time to collect, review, and produce emails responsive to BBY's discovery requests, as well as to agree upon an ESI search protocol with BBY. BAL has engaged in a thorough effort to comply with this order.

3. First, BAL has expended significant effort to collect data from all custodians BAL could identify, after a reasonably diligent inquiry, who may have communicated with BBY or an intermediary that shipped BBY's Cargo (although, at present BAL does not know whether any of these individuals ever had such communications and seriously doubts their existence). As previously explained by BAL, BAL generally did not interact with underlying shippers, including BBY. BAL's initial research confirms this, as previous searches of five key custodians' accounts using the terms "Bed Bath," "BBB," "Bedbath," and "Bedbath&beyond" yielded zero responsive results. Regardless, and in furtherance of the Second Revised Scheduling Order, BAL collected, downloaded, and ingested the email data of these original five custodians as well as the data from four additional custodians (and their five associated email accounts) into an e-discovery platform. BAL's collection efforts took more than two weeks to complete, due to the substantial time associated with downloading and transferring the custodians' data off BAL's servers in

China onto servers in the United States. BAL faced additional challenges in completing these efforts because unlike BBY, **BAL has never engaged in extensive email e-discovery prior to this Action.** Ultimately, BAL completed all collection, downloads, and ingestion of its custodians' accounts into its e-discovery platform by August 29, 2025. As of the date of this Motion, BAL is fully prepared to run searches on this data and produce relevant results to BBY, as soon as the Parties can agree on an ESI search protocol.

4. Second, BAL has diligently worked with BBY to draft a mutually-agreeable ESI search protocol. On August 13, 2025, counsel for BBY provided counsel for BAL a draft ESI search protocol, which contained multiple provisions wholly inconsistent with the Presiding Officer's July 16, 2025 order granting in part and denying in part BBY's first motion to compel (the "Order"). For example, BBY's proposed search terms included "COVID-19," "labor," and "quarantine." These topics were rejected on page 10 of the Order, when the Presiding Officer denied BBY's Request for Production No. 13. BBY also sought information related to refunds and waivers of detention and demurrage from **other shippers**, a topic rejected on page 12 of the Order, when the Presiding Officer denied BBY's Request for Production No. 15. Critically, BBY failed to address the Presiding Officers' rejection of Request for Production No. 5(c) and Interrogatory No. 15 on page 6 of the Order, **which narrowed much of BBY's discovery to the ports of discharge and destination only.** Counsel for BAL spent significant time revising BAL's original draft protocol, and provided an updated draft to counsel for BBY on August 22, 2025. After another round of revisions by counsel for both BBY and BAL, the Parties agreed in principle to all terms for the search protocol.

5. Unfortunately, the Parties have reached an impasse which has prevented BAL from meaningfully implementing the search protocol. Presently, the Parties dispute whether the two

owners of BAL need to be included in BAL's list of custodians (the same list BAL has already amended once in furtherance of the Presiding Officer's Order). Counsel for BAL recognized the impact this impasse would have on implementing the search protocol and on the Second Revised Scheduling Order and immediately suggested to BBY's counsel filing a joint motion before the Presiding Officer to resolve this narrow discovery dispute. This approach would have served as an opportunity to receive streamlined guidance from the Presiding Officer aimed at resolving this dispute and implementing the ESI search protocol as soon as possible. Counsel for BBY initially indicated his openness to a joint motion but backed out when BAL suggested a joint filing date **one day later** (September 11, 2025) than the date counsel for BBY suggested (September 10, 2025). Counsel for BBY then indicated that BBY would file unilaterally, necessitating the much-longer timeline associated with BBY's motion to compel, BAL's response, BBY's (potential) reply, and the Presiding Officer's ultimate ruling. Indeed, and contrary to the position espoused by BBY in the motion to compel it has now filed, the very reason discovery has stalled is due to BBY's unwillingness to streamline resolution of the Parties' narrow discovery dispute.

6. Because of the Parties' custodian dispute, and BBY's now-filed motion to compel, BAL respectfully requests that the Presiding Officer grant a 45-day extension to the Second Revised Scheduling Order. BAL requests this time to accommodate its need to respond to BBY's motion to compel and implement future directives from the Presiding Officer regarding the custodian list. After the Presiding Officer provides direction regarding the custodian list, BAL will also require time to perform all searches listed in the search protocol, review the documents for relevance, attorney-client privilege, and confidentiality before production to BBY can be accomplished.

7. BAL further anticipates that the delay in implementing the search protocol due to BBY's unilateral motion to compel will interfere with the Parties' ability to complete fact witness depositions by the current October 15, 2025 deadline. BAL believes that a 45-day extension will allow time to implement the Presiding Officer's ruling regarding BAL's custodian list, produce responsive documents to BBY, and take depositions of all fact witnesses under the proposed revised schedule below.

8. BAL will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, further issues related to custodians or to collection and production of documents arise. BAL will work to limit such extension requests to the extent possible.

9. Pursuant to 46 C.F.R. Section 502.71, counsel for BBY and BAL have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought. BBY indicated that it is not opposed to this Motion. BAL requests the following amended schedule:

October 30, 2025	Respondent provides documents identified in Order on Complainant's Motion to Compel.
December 1, 2025	Complete depositions of fact witnesses. Last day to serve interrogatories, requests for admissions, and RFPs.
December 15, 2025	Disclosure of initial expert reports, if any.
January 15, 2026	Disclosure of rebuttal expert reports, if any.
January 29, 2026	Complete expert depositions. Close of all discovery.
February 20, 2026	Complainant's initial brief, proposed findings of fact, and appendix.

March 23, 2026 Respondent's opposition brief, proposed finding of fact, and appendix.

April 6, 2026 Complainant's reply brief and responses to Respondent's proposed findings of fact.

10. WHEREFORE, BAL prays that its Unopposed Motion for Third Amended Scheduling Order be granted.

Dated: September 11, 2025

Respectfully submitted,

THEODORA ORINGHER



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 11th day of September, 2025, a true and correct copy of the foregoing **RESPONDENT'S EMERGENCY UNOPPOSED MOTION TO EXTEND DEADLINES** was served via electronic mail on:

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